

GINSBURG, J., dissenting

tution, rather than from a federal statute. Either way, we are exercising legislative power vested in Congress. Cf. *Carlson*, 446 U. S., at 51 (Rehnquist, J., dissenting) (“The policy questions at issue in the creation of any tort remedies, constitutional or otherwise, involve judgments as to diverse factors that are more appropriately made by the legislature than by this Court in an attempt to fashion a constitutional common law”).

This usurpation of legislative power is all the more troubling because Congress has demonstrated that it knows how to create a cause of action to recover damages for constitutional violations when it wishes to do so. In 42 U. S. C. § 1983, Congress provided a cause of action that allows persons to recover damages for certain deprivations of constitutional rights by *state officers*. Congress has chosen not to provide such a cause of action against *federal officers*. In fact, it has pre-empted the state tort suits that traditionally served as the mechanism by which damages were recovered from federal officers. 28 U. S. C. § 2679(b); *Minneeci v. Pollard*, 565 U. S. 118, 126 (2012). “[I]t is not for us to fill any *hiatus* Congress has left in this area.” *Wheeldin*, 373 U. S., at 652.

* * *

The analysis underlying *Bivens* cannot be defended. We have cabined the doctrine’s scope, undermined its foundation, and limited its precedential value. It is time to correct this Court’s error and abandon the doctrine altogether.

JUSTICE GINSBURG, with whom JUSTICE BREYER, JUSTICE SOTOMAYOR, and JUSTICE KAGAN join, dissenting.

In *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), this Court held that injured plaintiffs could pursue claims for damages against U. S. officers for conduct disregarding constitutional constraints. The instant suit, invoking *Bivens*, arose in tragic circumstances. In 2010, the complaint alleges, a Mexican teenager was playing with